

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
WEDNESDAY, AUGUST 26, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**BANK OF AMERICA N.A. v. MARIA M. AMPARO
Case No. CL26-03552**

Motion for Judgment on the Pleadings

TENTATIVE RULING:

The unopposed motion for judgment on the pleadings by Plaintiff BANK OF AMERICA N.A. is GRANTED. Defendant AMPARO's answer admits the allegations in the complaint.

Judgment is for Plaintiff in the sum of \$4085.54. Plaintiff's memorandum of costs reflects costs of \$386.

The court will process the proposed judgment lodged with the court.

**TOM v. EDINGER
Case No. CU25-06789**

Motion by Defendants for (Anti-SLAPP) Attorneys Fees

TENTATIVE RULING:

Code of Civil Procedure § 425.16 does not require the parties to meet and confer before filing of an anti-SLAPP motion. (*Trinity Risk Management, LLC v. Simplified Labor Staffing Solutions, Inc.* (2021) 59 Cal.App.5th 995, 1008.)

Defendants who prevail on special motions to strike are entitled to an award of attorneys fees reasonably incurred in bringing an anti-SLAPP challenge. (CCP, § 425.16(c).) An award of attorneys fees to a prevailing anti-SLAPP defendant is mandatory. (*Zand v. Sukumar* (2026) 119 Cal.App.5th 1144, 1155; *Trapp v. Naiman* (2013) 218 Cal.App.4th 113, 122.)

The court reduces the amount of time claimed incurred on the anti-SLAPP motion and this motion for attorneys fees and costs, finding the reasonable number of attorney hours incurred on these motions is 40.0. At the claimed reasonable hourly rate of \$500, the court awards Defendants anti-SLAPP attorneys fees in the amount of \$20,000, and costs of \$120, for a total award of fees and costs of \$20,120.00.

Neither party appears to have filed case management conference statements for the 8:30 CMC2. No responsive pleading appears to have been filed as to the July 28, 2026 First Amended Complaint.

Parties shall meet and confer. Plaintiff shall take the lead in submitting a joint case management conference statement. The joint statement shall identify the name of a mediator and a stipulated discovery schedule.

On its own motion the court continues the CMC2 to October 1, 2026 at 8:30.

Laura Mei Eytan, et al. vs. Joshua Russell, et al.
Case No. CU25-07545

**Motion to Compel Responses to Discovery and Deem Request for Admissions
Admitted**

TENTATIVE RULING:

Moving party's motion to compel discovery responses is GRANTED. Plaintiff LAURA MEI EYTAN shall respond without objection to the Form Interrogatories (Set One), Special Interrogatories (Set One), Request for Production of Documents and Things (Set One) within 20 days of service of this order. Plaintiff is deemed to have waived all objections.

As to the motion to deem matters admitted, Plaintiff EYTAN is deemed to have admitted each request in the Requests for Admission (Set One) and the genuineness of each document in Request for Admissions re Genuineness of Documents (Set One).

Pursuant to Code of Civil Procedure section 1010.6 and California Rules of Court, rule 2.251, the Solano County Superior Court adopted Local Rule 20.2 effective January 1, 2025, which mandates e-filing and e-service by attorneys in all civil matters. Attorney Roundy's failure to maintain an accurate email address as reflected on his complaint or minimally with the State Bar is akin to his failure to notify the court and an opposing party that he has moved and has a new mailing address. As counsel of record for